

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,

Complainant,

v.

AMAZON.COM SERVICES LLC,

AMAZON LOGISTICS INC.,

and

BEIJING CENTURY JOYO COURIER SERVICE CO.,
LTD.,

Respondents.

DOCKET NO. 25-04

**RESPONDENTS' OPPOSITION TO COMPLAINANT'S
MOTION TO COMPEL FURTHER RESPONSES REGARDING REQUESTS FOR
PRODUCTION OF DOCUMENTS NOS. 48-51**

Respondents Amazon.com Services LLC (“Amazon”), Amazon Logistics, Inc. (“ALI”), and Beijing Century Joyo Courier Service Co., Ltd. (“BCJ”), oppose Complainant China United Lines, Ltd.’s (“China United”) Motion to Compel Further Responses Regarding Requests for Production of Documents Nos. 48-51 (the “Motion”).¹

I. INTRODUCTION

This is another in a series of discovery motions filed by Complainant China United Lines, Ltd. (“China United”) in a Shipping Act proceeding that has its genesis in a contract dispute

¹ The Amended Complaint named ALI and BCJ as Respondents for the purpose of attempting to assert jurisdiction over claims that have now been dismissed. This proceeding now focusses on Amazon’s alleged misconduct. China United’s corporate witness has confirmed that neither ALI nor BCJ took any action concerning the contract termination that is the basis of China United’s Amended Complaint. China United’s parallel action in the Southern District of New York names only Amazon as a defendant.

pending before the U.S. District Court of the Southern District of New York (“Southern District”). Your Honor has already dismissed four of the five claims China United asserted in this proceeding to try to turn what is truly a contractual dispute into a Shipping Act case, and China United has abandoned the theory identified in that Order as the apparent basis for its remaining section 41102(a) claim.² This remaining claim requires China United to show that Amazon obtained or attempted to obtain ocean transportation at lesser rates through an unjust or unfair device or means, and the June 6 Order holds that this requires showing fraud, deceit, or concealment. June 6 Order at 11 (quoting *United States v. Open Bulk Containers*, 727 F.2d 1061, 1064 (11th Cir. 1984)). The discovery responses China United seeks to compel here, which are identical to requests propounded in the Southern District litigation, are not relevant to the narrow claim remaining in this proceeding.

China United seeks to require Amazon to provide information on its business relationships relating to “any contract with any carrier or other logistics services provider or supplier in the Asia-US Transpacific Trade” and “any service contract similar in nature or drafting to the MTA and Work Order.” Motion at 2. China United claims that it requires this discovery for three reasons: (1) Amazon’s contracts with other carriers, logistics service providers and suppliers will show a pattern of using obscure provisions within its contracts; (2) Amazon’s contractual dealings with other vendors will establish Amazon’s custom and practice in support of its interpretation of the contract; and (3) Amazon’s business dealings with other contractual counterparties could in some

² Compare June 6 Order at 12 (assuming the truth of the assertion that “Amazon entered into the service contract with the intent of obtaining lower shipping rates and then terminating the contract without paying liquidated damages agreed to if the market shipping rates fell”) *with* Respondents’ Opposition to Motion to Compel Corporate Testimony, at 5, citing Ex. 2 at 6 (“CUL no longer asserts that Amazon entered into the service contract with the intent of terminating and not paying the shortfall penalty”).

unspecified way prove its “dishonest, deceitful, and wrongful conduct.” *Id.* at 3. None of these asserted grounds are sufficient to establish relevance with respect to the remaining claim before the Federal Maritime Commission.

The bases on which China United purports to seek discovery about *other* carriers are unrelated to establishing the fraud, deceit or concealment *as to China United* necessary to establish a section 41102(a) claim. Whether Amazon has or has not relied on “obscure” provisions in other contracts has nothing to do with whether Amazon committed fraud against China United. China United cites no law as to what an “obscure” contractual provision might be or why a party may not properly rely on one. In any event, China United does not allege, nor could it, that Amazon has ever made a representation to it about these other contracts, much less one that could be viewed as fraudulent/deceitful or that could be the basis of a concealment claim. Matters of contract interpretation are even farther afield from the required element of fraud, deceit, or concealment. That China United is simply grasping at straws can also be seen from the fact that Amazon served its objections as to these requests on August 11, 2025, and China United waited over six months, until literally the last hour of the last day of the fact discovery period, to file this Motion, along with another filed after midnight, to try and avoid a reckoning on the merits.³

II. LEGAL STANDARD

Discovery must be “relevant to the subject matter involved in the pending action” or “reasonably calculated to lead to the discovery of admissible evidence.” *Epstein v. MCA, Inc.*, 54 F.3d 1422, 1426 (9th Cir. 1995); *see also* Fed. R. Civ. P. 26(b)(1). Accordingly, a party’s discovery

³ China United’s extensive motion practice to this point includes a motion to compel testimony on similar matters as corporate deposition topics, which Amazon has objected to as set forth in its Opposition to that motion filed February 9, 2026. China United has sought leave to file a reply in support of that motion, which should be denied for the reasons set out in Amazon’s Opposition to that Request, filed February 20, 2026.

obligations extend only to inquiries that are relevant to the claims alleged. *Champion Foodservice, LLC v. Vista Food Exchange, Inc.*, 2016 WL 4468000, at *1 (N.D. Ohio Aug. 23, 2016) (finding discovery requests proper where the information sought was “clearly relevant and required under the federal rules”). Further, “[p]arties cannot go on fishing expeditions and seek irrelevant discovery.” *MCS Indus., Inc. v. COSCO Shipping Lines Co.*, FMC Dkt. No. 21-05, 2021 WL 5908366, at *3–4 (ALJ Dec. 8, 2021). As the authority cited by China United recognizes, relevance objections are expressly permitted when discovery requests go beyond these well-established bounds. *Johnson v. Kraft Foods North America, Inc.*, 236 F.R.D. 535, 541 (D. Kan. 2006) (allowing an objection based on lack of relevancy to be “lodged in the responsive pleading”).

Further, while Plaintiffs are entitled to discover information relevant to any claim or defense at issue in this case, discovery must be proportional to the needs of the case. *See Watkins v. Nurture, LLC*, 2024 WL 232083 at *2 (E.D. La. Jan. 22, 2024). The Commission’s discovery rules are consistent with the federal rule, which limits discovery when the information can be obtained from “some other source that is more convenient, less burdensome, or less expensive,” or when “the burden or expense of the proposed discovery outweighs its likely benefit, considering the needs of the case, the importance of the issues at stake, and the importance of the discovery in resolving the issues.” Fed. R. Civ. P. 26(b); *see also* 46 C.F.R. § 502.141(e). The Federal Rules also emphasize the need for “reasonable limits on discovery through increased reliance on the common-sense concept of proportionality” designed to “provide parties with efficient access to what is needed to prove a claim or defense, but eliminate unnecessary or wasteful discovery.” *Roberts v. Clark Cnty. Sch. Dist.*, 312 F.R.D. 594, 603 (D. Nev. 2016) (discussing Fed. R. Civ. P. 26(b)(1)).

Simply put, in this case, document discovery that is proportional and relevant to the needs of this case is limited to information relevant to China United's sole remaining section 41102(a) claim. Commission precedent makes clear that "the critical 'unjust or unfair device or means' element of such a claim requires conduct that involves fraud or concealment as to a factual matter." *Samsung Electronics America, Inc. v. Orient Overseas Container Line Ltd.* ("Samsung Electronics"), FMC Docket No. 24-17, slip op. at 18-19 (July 30, 2025). Fishing expeditions into Amazon's contracts with China United's competitors in the hopes of further bolstering a claim pending in another forum do not suffice. *Id.*

III. ARGUMENT

A. Requests for Production Nos. 48-51 Seek Information That is Not Relevant to Any Claim or Defense Currently Pending in This Proceeding

The Motion seeks to compel responses regarding requests for production of documents related to Amazon's dealings with third party vendors to establish Amazon's customs, practices, and interpretation of the contract between Amazon and China United. *See* Motion at 5-7. Information regarding Amazon's contractual relationships and dealings with other parties does not relate to the issue of whether China United can establish fraud or concealment as required under section 41102(a) of the Shipping Act.

As China United has acknowledged in its Motion to Compel Corporate Testimony, the elements of a section 41102(a) claim include: "(1) knowing and willful conduct; (2) through which, either 'directly or indirectly,' by means of the actions enumerated in the statute or through 'any other unjust or unfair device or means;' (3) respondent obtained or attempted to obtain ocean transportation at lesser rates. *Muhammad Rana v. Michelle Franklin D.B.A. "The Right Move," Inc.*, Dkt. No. 19-03, 2022 WL 1744905, at *7 (FMC May 25, 2022). To prove the element of

“unjust or unfair device or means,” China United must show fraud or concealment. June 6 Order at 11-12.

China United speculates that discovery regarding Amazon’s similar contracts will allow it to show that Amazon enforces its contractual provisions inconsistently as part of “an unjust and unfair scheme.” China United cites to *PKDC, LLC v. CMA CGM S.A.* for the proposition that a carrier’s “broader practices” are relevant to refusal to deal and unfair practices claims. 2024 WL 5229720 at *8 (2024); Motion at 5. *PKDC* is distinguishable. China United’s unfair practices claim under section 41102(c), which requires such a pattern, has been dismissed. *See* June 6 Order at 18. *PKDC* does not address a claim under section 41102(a), China United’s sole remaining claim which China United concedes requires a showing of fraud, deception, or concealment. *See* Complainant’s Motion to Compel Corporate Testimony at 6. A generalized assertion that a practice is “unfair,” as a pattern and practice claim, is not enough. China United also does not explain how an “unfair scheme” would amount to either concealment or fraud with regard to China United for the purpose of obtaining lower rates. Nor can it. Even if Amazon responded and showed an inconsistent practice of enforcing publicity provisions in other contracts, such evidence is not relevant to whether Amazon engaged in the necessary “factual deception or misrepresentation inducing a carrier to carry or release cargo” required for a section 41102(a) claim. *See Samsung Electronics* at 18-19 (upholding dismissal of section 41102(a) claim which contained no factual allegation involving fraud or concealment). China United cannot reframe its section 41102(a) claim, which requires fraud, concealment, or deceit.

China United makes much of a press release issued by the carrier ZIM in 2022 describing ZIM’s efforts to design shipping products for Amazon sellers, asserting that it has “reason to believe” Amazon’s service contract with ZIM contains the same provision which China United

breached and which is the factual basis for its claim. *See* Motion at 6-7. Any business relationship between Amazon and ZIM is irrelevant to China United's claim. Even if it were relevant, China United's characterization of the ZIM release is directly contradicted by the deposition testimony of Amazon's Rule 143(b)(6) witness that the ZIM release focused on a service being offered to Amazon's sellers, not Amazon itself. *See* Longstreth Decl. Ex. A, Cardadeiro Dep. 155:10-156:4 ("it says that they've developed a new service... to meet the needs of Amazon sellers. It has nothing to do with doing business with us"). And even setting aside China United's unsupported speculation regarding the contents of any such agreement with ZIM, China United does not and cannot contend that Amazon has made any representations to it concerning its contracts with ZIM or any other third party, and China United cannot attribute fraud to Amazon from agreements it was not a party to and as to which Amazon has made no representations regarding.

China United further argues that discovery regarding similar contracts is relevant because the Shipping Act requires certain contract terms and assigns the Commission to ensure compliance with filed agreements under sections 41104(a)(2)(A), 41102(b), and 40502(c). Motion at 6. But none of these sections of the Act are at issue in this case, and Amazon's compliance with the Commission's service contract filing regulations has no relevance to China United's ability to prove fraud or concealment. Nor does China United have a roving commission to "probe the impact of [Amazon's] actions upon the broader shipping market." *Id.* China United's arguments underscore that Amazon's contractual dealings with other vendors have no relevance to proving a violation of section 41102(a) in this case.

B. Requests for Production Nos. 48-51 Seek Information that is Not Proportional to Any Claim or Defense Currently Pending in This Proceeding

Even if China United could show some tangential relevance of its discovery requests to the remaining claim in this case, they are in no way proportional to the single claim remaining in this

action. Specifically, China United seeks information on Amazon’s business relationships relating to “any contract with any carrier or other logistics services provider or supplier in the Asia-US Transpacific Trade” and “any service contract similar in nature or drafting to the MTA and Work Order,” across affiliates, covering any and all trade lanes. *See* Motion at 7-10, Table of Requests Nos. 48-51. Amazon partnered with at least ten different ocean carrier partners during the 2022-2023 period alone and likely has scores of other agreements with other logistics service providers and suppliers. China United also appears to seek production of *all* such contracts regardless of time period, given its vague request for “documents or communications showing when, and with which Ocean Carrier” the relevant contracts were made, but even production of those executed during the term of the Agreement would be unduly burdensome.

Although China United speculates that Amazon’s contract with ZIM “contains the same confidentiality provision as China United’s,” its requests are not narrowly tailored to Amazon’s communications and contracts with ZIM alone. Motion at 7. Producing the requested documents would require Amazon to identify and analyze every third-party contract containing minimum quantity commitments that were allegedly terminated prior to fulfillment (no. 48), every filed third-party contract permitting termination for cause without liquidated damages (no. 49), every third-party contract restricting use of Amazon’s trade name (no. 50), every renegotiation of minimum quantity commitments or rates in any service contract deemed “similar in nature or drafting” to the one at issue (no. 51), and any and all documents and communications related to such contracts and inquiries (nos. 48-51). This sweeping, vague inquiry into numerous unrelated third-party agreements far exceeds what is proportional or necessary to resolve the single section 41102(a) claim even if there were some showing of relevance, and there is none here.

C. China United Seeks Discovery Tied to Claims Dismissed by the June 6 Order

China United's discovery into Amazon's contracts and dealings with other carriers also appears to be an improper attempt to circumvent Your Honor's dismissal of Counts II-IV of its Amended Complaint. Those counts alleged Shipping Act violations under sections 41102(c), 41104(a)(1), and 41104(a)(2) and asserted Amazon engaged in a prohibited "pattern" of conduct by taking "similar" actions across other service contracts. *See* Amended Complaint ¶¶ 52, 54, 68, 79. The June 6 Order rejected all of those claims and left standing only a single, narrowly defined claim under section 41102(a), proceeding on a limited theory requiring proof of fraud or concealment directed at China United. June 6 Order at 11-12. Amazon's practices with other carriers are irrelevant to this remaining claim and cannot justify the expansive discovery China United seeks.

D. China United Has Made No Effort to Narrow its Requests to Specific Time Periods and Third-Party Relationships

China United fails to offer any proposal to narrow its requests to specific time periods and third-party carrier relationships that might be of relevance to its claim, despite having waited six months until the end of the fact discovery period to file its motion. China United has had ample opportunity since Amazon filed its objections to request Nos. 48-51 in August to meet and confer and/or file a Motion to Compel. Rather than do so, it waited until the final day of discovery to resort to motion practice. Motions to Compel have been denied where there have been unwarranted delays in filing them. In one such case Your Honor held that:

[Complainant's] delay in filing the motion to compel suggests that these documents were not a priority and [complainant] had ample opportunity to obtain the information over the ten months that this case has been pending. . . . At this late date, the motion to compel will be denied."

YSN Imports v. Oberlander, Docket No. 21-02, 2022 WL 247912, at *2 (2022).

Where the third-party contracts and dealings are, at the very most, only marginally relevant and discovery is at an advanced stage, this failure provides a further reason to deny the Motion.

IV. CONCLUSION

The discovery China United seeks to compel is not related to any claim or defense remaining in this proceeding and, therefore, is likewise not proportional to the needs of the case. The Motion to Compel Responses Regarding Requests for Production of Documents Nos. 48-51 should be denied.

Respectfully submitted,

/s/ John Longstreth

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February 20, 2026

CERTIFICATE OF SERVICE

I certify that on this 20th day of February, 2026, the aforesaid Opposition to Complainant's Motion to Compel Further Responses Regarding Requests for Production Nos. 48-51 has been filed with the Secretary for the public docket, with a copy to judges@fmc.gov and served on the following counsel of record, as provided by the Initial Order in this proceeding.

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